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Case Number: 26TRCV00665 Hearing Date: September 24, 2026 Dept: 5

Superior Court of California

County of Los Angeles – SOUTHWEST District

Department

5

ANITA JONES

;

Plaintiff,

vs.

RONALD A. EDDINGS

, et al.;

Defendants.

Case

No.:

26TRCV00665

Hearing

Date:

September
24, 2026

Time:

8:30 a.m.

[tentative]

Order RE:

(1) DEFENDANTS

ELLA L. DROLLINGER COMPANY, LLC, DROLLINGER PROPERTIES, AND H.B. DROLLINGER'S
DEMURRER TO PLAINTIFF ANITA JONES' COMPLAINT

(2) DEFENDANTS

DAVID G. EDDINGS, CHERRYL V. EDDINGS, AND RONALD D. EDDINGS' DEMURRER

(3) DEFENDANTS

DAVID G. EDDINGS, CHERRYL V. EDDINGS, AND RONALD D. EDDINGS' MOTION TO STRIKE
PORTIONS OF PLAINTIFF ANITA JONES' COMPLAINT

(4) PLAINTIFF

ANITA JONES' REQUEST FOR LEAVE TO AMEND

MOVING PARTY: Demurrer filed on 08/06/26 – Defendants,
Ella L. Drollinger Company, LLC, Drollinger Properties, and H.B. Drollinger

Demurrer and Motion to Strike filed on 08/11/26
– Defendants, David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings

RESPONDING PARTY: Plaintiff, Anita Jones

(1)

Defendants

Ella L. Drollinger Company, LLC, Drollinger Properties, and H.B. Drollinger's
Demurrer to Plaintiff Anita Jones' Complaint is OVERRULED with respect to the fourth
cause of action and SUSTAINED with respect to the first and fifth cause of
action pursuant to Code of Civil Procedure section 430.10.

(2)

Defendants

David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings' Demurrer is OVERRULED pursuant to Code of Civil Procedure section 430.10.

(3)

Defendants

David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings' Motion to Strike Portions of Plaintiff Anita Jones' Complaint is GRANTED IN PART pursuant to Code of Civil Procedure section 435.

(4)

Plaintiff

Anita Jones is GRANTED twenty (20) days Leave to Amend with respect to the first cause of action.

(5)

Plaintiff

Anita Jones is DENIED Leave to Amend with respect to the fifth cause of action, the allegations and prayers for relief related to punitive and exemplary damages, joint and several liability, and injunctive relief.

The Court considers the moving papers filed on August 6 and 11, the opposition briefs filed on August 6 and 27, 2026, and the reply briefs filed on September 1, 2, and 3, 2026.

BACKGROUND

Factual Background

On February 23, 2026, plaintiff Anita Jones ("Plaintiff") filed the Complaint against defendants Ronald A. Eddings, David G. Eddings, David G. Eddings, Jr., Cheryl B. Eddings, Angel Gutierrez, Erik Gutierrez, Hollywood Stars Tattoo, Charles Honest VIP Events, LLC, Ella L. Drollinger Company, LLC, Drollinger Properties, H.B. Drollinger, Melody Bar & Grill, and DOES 1 through 5000. The Complaint includes the following causes of action: (1) Negligence; (2) Premises Liability; (3) Violation of Business & Professions Code § 17200; (4) Intentional Misrepresentation; (5) Negligent Misrepresentation; and (6) Violation of Business & Professions Code § 25604.

On July 2, 2026, counsel for Drollinger Company, LLC, Drollinger Properties, and H.B. Drollinger (collectively, the “Drollinger Defendants”) had a phone conversation with Plaintiff’s counsel regarding the issues raised in the demurrer. (Declaration of Nevin Miller (“Miller Decl.”), ¶ 3.) However, Plaintiff declined to either amend the Complaint or dismiss the Drollinger Defendants. (Miller Decl., ¶ 4.) Consequently, the parties were unable to reach a resolution. (Miller Decl., ¶ 5.)

On August 18, 2026, Plaintiff filed an amendment to the Complaint, informing the Court that Angel Gutierrez’s true name is Luis Gutierrez.

Procedural Background

On July 13, 2026, Defendants filed the demurrer and motion to strike.

On August 10, 2026, Defendants filed notices of non-opposition. On August 10, 2026, Plaintiff filed an opposition brief to the demurrer. On August 12, 2026, Defendants filed a reply brief.

On August 13, 2026, the Court continued the hearing from August 19, 2026, to August 28, 2026. On August 28, 2026, the Court continued the hearing to August 31, 2026.

MEET AND CONFER REQUIREMENT

Before filing a demurrer or motion to strike, the moving party is required to meet and confer in person, by telephone, or via video conference with the party that filed the pleading that is subject to the motion to determine whether an agreement can be reached that would resolve the objections to be raised in the demurrer or motion to strike. (Code Civ. Proc., §§ 430.41, subd. (a), 435.5, subd. (a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc., §§ 430.41, subd. (a)(2), 435.5, subd. (a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet-and-confer efforts. (Code Civ. Proc., §§ 430.41, subd. (a)(3), 435.5, subd. (a)(3).) A

determination by the court that the meet and confer process was inadequate shall not be grounds to overrule or sustain a demurrer, or to grant or deny a motion to strike. (Code Civil Proc., §§ 430.41, subd. (a)(4), 435.5, subd. (a)(4).)

The Drollinger Defendants

On July 2, 2026, counsel for the Drollinger Defendants had a phone conversation with Plaintiff's counsel regarding the issues raised in the demurrer. (Miller Decl., ¶ 3.) However, Plaintiff declined to either amend the Complaint or dismiss the Drollinger Defendants. (Miller Decl., ¶ 4.) Consequently, the parties were unable to reach a resolution. (Miller Decl., ¶ 5.)

The Court finds that the parties sufficiently met and conferred prior to the Drollinger Defendants filing the demurrer.

The Eddings Defendants

David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings (collectively, the "Eddings Defendants") acknowledge that they failed to meet and confer as required by Code of Civil Procedure sections 430.41, subdivision (a), and 435.5, subdivision (a). (Dem., pp. 9:19-10:8; MTS, p. 10:7-18.)

In typical circumstances, the Court would either continue the hearing or overrule the demurrer and deny the motion to strike, as the Eddings Defendants have not provided any declarations demonstrating their efforts to meet and confer regarding the alleged deficiencies discussed in the pleadings. However, "Plaintiff does not dispute the declaration of the Eddings Defendants' counsel, nor the Court's authority to exercise discretion to decide the [Demurrer or Motion to Strike] on its merits. As such, Plaintiff submits to the discretion of the Court." (Opp. to Dem., p. 6:9-11; Opp. to MTS, p. 6:13-15.)

As a result, it appears that Plaintiff is waiving this requirement. The Court will consequently proceed to rule on the merits of the demurrer and the motion to strike.

DEMURRER

Legal Standard

A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) "To survive a demurrer, the complaint need only allege facts sufficient to state a cause of action; each evidentiary fact that might eventually form part of the plaintiff's proof need not be alleged." (C.A. v. William S. Hart Union High School Dist. (2012) 53 Cal.4th 861, 872.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded. (Aubry v. Tri-City Hospital Dist. (1992) 2 Cal.4th 962, 966-967.) A demurrer "does not admit contentions, deductions or conclusions of fact or law." (Daar v. Yellow Cab Co. (1967) 67 Cal.2d 695, 713.)

A pleading is uncertain if it is ambiguous or unintelligible. (Code Civ. Proc., § 430.10, subd. (f).) A demurrer for uncertainty may lie if the failure to label the parties and claims renders the complaint so confusing that the defendant cannot tell what he or she is supposed to respond to. (Williams v. Beechnut Nutrition Corp. (1986) 185 Cal.App.3d 135, 139, fn. 2.) However, "[a] demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures." (Khoury v. Maly's of California, Inc. (1993) 14 Cal.App.4th 612, 616.)

Discussion

The Drollinger Defendants

First Cause of Action – Negligence

The Drollinger Defendants demur to Plaintiff's first cause of action for negligence on the following grounds: (1) the claim is uncertain; (2) they did not owe a duty to Plaintiff; and (3) they did not breach any duty to exercise reasonable care in directing patrons to the subject premises. (Notice, pp. 2:8-10;

Dem., pp. 3:3-4:4:15.) The Court agrees with the second argument and will refrain from addressing the merits of the remaining two arguments.

“ ‘The elements of a cause of action for negligence are well established. They are “(a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” ’ ” (Ladd v. County of San Mateo (1996) 12 Cal.4th 913, 917, quoting Evan F. v. Hughson United Methodist Church (1992) 8 Cal.App.4th 828, 834.)

Plaintiff asserts that: “DEFENDANTS, and each of them, and DOES 1 through 5000, inclusive, were under a duty to exercise reasonable care for the safety of Plaintiff in owning, operating, managing, controlling, maintaining, improving, inspecting, using, supervising and/or otherwise providing safe conditions at the PREMISES, and to protect all persons on said PREMISES, including Plaintiff.” (Compl., ¶ 18.) Plaintiff further alleges, “At the aforesaid time and place, DEFENDANTS, and each of them, and DOES 1 through 5000, individually and/or by and through their agents, servants and/or employees, had a duty to exercise ordinary care in the management, construction, repair, operation, control, use, and maintenance of the PREMISES in order to avoid exposing persons lawfully on the PREMISES to an unreasonable risk of harm.” (Compl., ¶ 19.) Lastly, Plaintiff contends, “DEFENDANTS, and each of them, and DOES 1 through 5000, by serving alcohol to patrons for consumption on its premises, must exercise reasonable care to protect patrons from physical confrontations at the hands of fellow guests.” (Compl., ¶ 20.)

The Drollinger Defendants assert that they owed no duty to Plaintiff, arguing that they “did not own, operate, manage, control, maintain, improve, use, supervise, or otherwise owe a duty to exercise reasonable care for the location where the injury occurred. There are no allegations that Plaintiff entered any location Drollinger Defendants owned, operated, managed, controlled, maintained, improved, used, or supervised.” (Dem., p. 3:21-24.) The Court agrees.

“A defendant cannot be held liable for the defective or dangerous condition of property which it did not own, possess, or control.” (Isaacs v. Huntington Memorial Hospital (1985) 38 Cal.3d 112, 134.) Plaintiff does not allege that the Drollinger Defendants owned, possessed, or controlled the premises in question. Rather, Plaintiff states that they “were

operating a business adjacent to or near the PREMISES.” (Compl., ¶ 7.) Consequently, the Drollinger Defendants do not owe the duties articulated in paragraphs 18 to 20 of the Complaint.

Plaintiff maintains that

the Drollinger Defendants owed “a duty to exercise reasonable care in the conduct of his or her own activities.”

(Opp., p. 7:11-12.) Plaintiff

further asserts that “the claim is grounded on the defendant’s own affirmative act creating an undue risk of harm.”

(Opp., p. 7:21-22.) However, the

Court observes that Plaintiff fails to make such allegations in the Complaint. Instead, Plaintiff specifically claims that “MELODY

BAR & GRILL, acting through its employees and/or agents within the course and scope of their employment, affirmatively directed and encouraged Plaintiff to attend the after-hours club located at the PREMISES. In doing so, MELODY BAR & GRILL undertook a duty to exercise reasonable care in directing patrons to a location it knew or reasonably should have known was operating an unlawful, unlicensed and unpermitted after-hours club involving alcohol service, overcrowding, inadequate security, and unsafe patron conditions.” (Compl., ¶ 28.) Plaintiff does not extend this duty to the Drollinger Defendants; therefore, the Court will not extend it either.

Accordingly, the Court SUSTAINS

the Drollinger Defendants’ demurrer to the first cause of action for negligence.

Fourth Cause of Action – Intentional Misrepresentation

The Drollinger Defendants demur

to Plaintiff’s fourth cause of action for intentional misrepresentation on the following grounds: (1) Plaintiff failed to allege any representations, whether

false or otherwise, made by the Drollinger Defendants to Plaintiff. (Dem., p. 5:1-2.) The Court agrees with this assertion but finds that

Plaintiff alleges the concealment of material facts instead.

“ ‘The elements of actual

fraud, whether as the basis of the remedy on contract or tort, may be stated as

follows: There must be (1) a false representation or concealment of a

material fact (or, in some cases, an opinion) susceptible of knowledge, (2)

made with knowledge of its falsity or without sufficient knowledge on the

subject to warrant a representation, (3) with the intent to induce the person

to whom it is made to act upon it; and such person must (4) act in reliance

upon the representation (5) to his damage.

[Citations.]’ [Citations.]” (South Tahoe Gas Co. v. Hofmann Land Improvement Co. (1972) 25 Cal.App.3d 750, 765, internal citation omitted.)

Plaintiff alleges the

following: “[O]n information and belief, that Defendant DROLLINGER PROPERTIES, H.B. DROLLINGER, ELLA L. DROLLINGER COMPANY, LLC, MELODY BAR & GRILL, and DOES 301-400, inclusive, are, and at all times herein mentioned were, business entities of form unknown, and were operating a business adjacent to or near the PREMISES, affirmatively directed and encouraged Plaintiff and other patrons to the PREMISES, and did so in coordination with and/or for the commercial benefit of the operators of the EVENT, despite knowing or having reason to know of unsafe and dangerous conditions existing there.” (Compl., ¶ 7.) “In doing so, these DEFENDANTS represented, expressly or impliedly, that the after-hours club was an appropriate, legitimate, and safe place for patrons to attend.” (Compl., ¶ 74.) “These representations were false.” (Compl., ¶ 75.) “At the time the representations were made, these DEFENDANTS knew that the adjacent PREMISES was operating as an unlawful, unlicensed, and unpermitted after-hours club involving alcohol service, overcrowding, significant patron congestion, unsafe and dangerous conditions, and foreseeable confrontations and/or altercations.” (Compl., ¶ 76.) “These DEFENDANTS knew or reasonably should have known that security personnel at the PREMISES were insufficient and incompetent to supervise patron movement, control confrontations and/or altercations, maintain orderly crowd conditions, or prevent patrons from being pushed or diverted into unsafe areas of the PREMISES.” (Compl., ¶ 77.) “By directing Plaintiff to attend the after-hours club without disclosing the absence of adequate security and safe conditions existing there, these DEFENDANTS concealed material facts concerning the safety of the PREMISES.” (Compl., ¶ 78.)

Thus, while the Court

recognizes that the Drollinger Defendants did not make an explicit false representation, Plaintiff alleges that they concealed a material fact about the safety of the premises, which is permissible under the legal precedent cited by the Drollinger Defendants.

In their reply, the

Drollinger Defendants have introduced a new argument, contending, “As Plaintiff’s admit in their opposition, the causes of action against the Drollinger [D]efendants rest entirely on affirmative conduct in directing Plaintiff to the PREMISES. However,

paragraph 7 to which Plaintiff's entire opposition hinges, is nothing more than a general contention and conclusion as to one hundred and three (103) named and unnamed defendants. Every specific allegation related to this affirmative conduct specifically alleges that an employee of Melody Bar & Grill directed Plaintiff to the location where the incident occurred. (Complaint ¶¶ 8, 28, and 73). There are no allegations that any person related in any shape or form with the Drollinger defendants made any such affirmative conduct or representation." The Court disagrees.

The Court finds that Plaintiff's allegation in paragraph 7 is not conclusory. Plaintiff specifically alleges the Drollinger Defendants' involvement. It is inconsequential that Plaintiff claims the other named and unnamed defendants directed and encouraged Plaintiff to go to the PREMISES, as this implies that all named defendants similarly directed and encouraged Plaintiff, while Plaintiff remains unaware of the identities of some involved defendants.

Accordingly, the Court OVERRULES the Drollinger Defendants' demurrer to the fourth cause of action for intentional misrepresentation.

Fifth Cause of Action – Negligent Misrepresentation

The Drollinger Defendants demur to Plaintiff's fifth cause of action for negligent misrepresentation on the following grounds: (1) Plaintiff failed to allege any representations, whether false or otherwise, made by the Drollinger Defendants to Plaintiff. (Dem., p. 5:21-22.) The Court agrees.

To state a claim for negligent misrepresentation, "a plaintiff must allege: (1) the defendant had a duty to exercise reasonable care to the victim in giving the information; (2) the defendant gave false information to the victim with a degree of culpability at least equal to negligence; (3) the victim actually and reasonably relied on the alleged misrepresentation; and (4) the victim's reliance on the misrepresentation proximately caused his or her injury or death. [Citation.]" (Weissich v. County of Marin (1990) 224 Cal.App.3d 1069, 1081, internal citation omitted.) "[A]n implied representation is insufficient" when the alleged negligent

misrepresentation has resulted in physical harm. (Id. at pp. 1082-1083.) Given that Plaintiff asserts she “sustain[ed] a severe fracture to her right ankle and other injuries[.]” an implied representation does not satisfy the requisite standard. (Compl., ¶ 10.)

Plaintiff alleges the following: “On or about February 25, 2024, employees and/or agents of these DEFENDANTS, acting within the course and scope of their employment, affirmatively directed and encouraged Plaintiff to attend the after-hours club located at the PREMISES.” (Compl., ¶ 88.) “In doing so, these DEFENDANTS represented, expressly or impliedly, that the after-hours club at the PREMISES was appropriate, legitimate and safe for patrons.” (Compl., ¶ 89.)

The Court concludes that Plaintiff alleges an implied representation, as there are no assertions indicating that the Drollinger Defendants informed Plaintiff that the club was appropriate, legitimate, and safe for patrons. This allegation is insufficient to constitute a “false representation” in the context of this case.

Accordingly, the Court SUSTAINS the Drollinger Defendants’ demurrer to the fifth cause of action for negligent misrepresentation.

The Eddings Defendants

Ronald A. Eddings

Before the Court renders a decision on the demurrer, it is essential to consider the implications of Ronald A. Eddings’ death. On August 18, 2026, Elysa Houze-Benson, the attorney representing the Eddings Defendants, became aware that Ronald A. Eddings had passed away. (Declaration of Elysa Houze-Benson (“Houze-Benson Decl.”), ¶ 3.) Houze-Benson posits that Mr. Ronald may have passed away in June 2026. (Houze-Benson Decl., ¶ 4.)

“Except as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person’s death, but survives subject to the applicable limitations period.” (Code Civ. Proc., § 377.20, subd. (a).) “A pending action or proceeding does not abate

by the death of a party if the cause of action survives.” (Code Civ. Proc., § 377.21.)

However, “[o]n motion, the court shall allow a pending action or proceeding against the decedent that does not abate to be continued against the decedent’s personal representative or, to the extent provided by statute, against the decedent’s successor in interest, except that the court may not permit an action or proceeding to be continued against the personal representative unless proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code governing creditor claims is first made.” (Code Civ. Proc., § 377.41.) Consequently, the continuation of the action against a personal representative is conditional upon adherence to the relevant Probate Code procedures concerning creditor claims.

As neither the estate nor the personal representative has submitted proof of compliance with Part 4 (commencing with Section 9000) of Division 7 of the Probate Code, the Court will neither sustain nor overrule the demurrer with respect to Ronald A. Eddings. However, the Court will proceed to evaluate the merits of the case concerning David G. Eddings and Cheryl B. Eddings. All references to the Eddings Defendants will expressly exclude Ronald A. Eddings.

Third Cause of Action – Violation of Business & Professions Code
§ 17200

The Eddings Defendants demur to Plaintiff’s third cause of action for violation of Business and Professions Code section 17200 on the following grounds: (1) Plaintiff does not adequately articulate a claim for restitution; (2) the alleged entry fee does not connect Plaintiff’s money to the Eddings Defendants; (3) Plaintiff lacks standing, as she fails to sufficiently demonstrate causation with respect to the Eddings Defendants; (4) Plaintiff does not provide sufficient factual allegations to support a request for injunctive relief; and (5) the claim is uncertain. (Dem., pp. 5:14-7:25.) The Court disagrees.

To state a cause of action for unfair competition (“UCL”), a plaintiff must establish that the defendant engaged in “unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising.” (Bus. & Prof. Code, § 17200, emphasis

added.) This section establishes three types of unfair competition, prohibiting “practices that are either ‘unfair,’ or ‘unlawful,’ or ‘fraudulent.’ ” (Pastoria v. Nationwide Ins. (2003) 112 Cal.App.4th 1490, 1496.) Thus, “[a]n act or practice may be actionable as ‘unfair’ under the unfair competition law even if it is not ‘unlawful.’ ” (Chavez v. Whirlpool Corp. (2001) 93 Cal.App.4th 363, 374.) “A ‘business act or practice’ is ‘unlawful’ under the unfair competition law if it violates a rule contained in some other state or federal statute.” (Sandoz Inc. v. Amgen Inc. (2017) 582 U.S. 1, 12, citing Rose v. Bank of America, N.A. (2013) 57 Cal.4th 390, 396.) “A plaintiff alleging unfair business practices under these statutes must state with reasonable particularity the facts supporting the statutory elements of the violation.” (Khoury v. Maly’s of California, Inc. (1993) 14 Cal.App.4th 612, 619.)

“A UCL action is equitable in nature; damages cannot be recovered. [Citation.] Civil penalties may be assessed in public unfair competition actions, but the law contains no criminal provisions. (§ 17206.) We have stated that under the UCL, ‘[p]revailing plaintiffs are generally limited to injunctive relief and restitution.’ [Citation.]” (Korea Supply Co. v. Lockheed Martin Corp. (2003) 29 Cal.4th 1134, 1144, internal citations omitted (Korea).) “[A]ttorney fees and damages, including punitive damages, are not available under the UCL.” (Id. at p. 1148.) Thus, if a plaintiff cannot demonstrate an entitlement to either restitution or injunctive relief, a valid claim under the UCL cannot be established. Should either form of relief be substantiated, the claim remains viable. As articulated in Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1047 (Kong), “a demurrer cannot rightfully be sustained to part of a cause of action or to a particular type of damage or remedy.”

“[A]n order for restitution is one ‘compelling a UCL defendant to return money obtained through an unfair business practice to those persons in interest from whom the property was taken, that is, to persons who had an ownership interest in the property or those claiming through that person.’ [Citation.] The object of restitution is to restore the status quo by returning to the plaintiff funds in which he or she has an ownership interest.” (Korea, supra, 29 Cal.4th at p. 1149, internal citation omitted.) “[R]estitution is broad enough to allow a plaintiff to recover money or property in which he or she has a vested interest.” (Ibid.) The UCL “requires only that the plaintiff

must once have had an ownership interest in the money or property acquired by the defendant through unlawful means.” (Shersher v. Superior Court (2007) 154 Cal.App.4th 1491, 1500 (Shersher).)

The

Court notes that the Eddings Defendants’ first three arguments relate to restitution; therefore, the Court will address them collectively.

Plaintiff

alleges the following: “[O]n

information and belief, that Defendant CHARLES HONEST VIP EVENTS, LLC, and DOES 101 through 200, inclusive, is, and at all times herein mentioned was, a business entity of form unknown, and was the operator, promoter, and/or organizer of an after-hours club at the PREMISES on February 25, 2024 (hereinafter the “EVENT”), and exercised possession, management, supervision, and control over the PREMISES.” (Compl., ¶ 3.)

“[O]n information and belief, that Defendants DAVID G. EDDINGS, CHERRYL V. EDDINGS, and DAVID G. EDDINGS JR., and DOES 101 through 200, inclusive, are, and at all times herein mentioned were, individuals involved in the operation, ownership, and/or control of an after-hours club at the subject PREMISES. DAVID G. EDDINGS, CHERRY V. EDDINGS and DAVID G. EDDINGS JR., and DOES 101 through 200, inclusive, exercised possession and control over the PREMISES.” (Compl., ¶ 4.)

Plaintiff

further claims: “DEFENDANTS operated and/or promoted an unlawful, unlicensed, and unpermitted after-hours club at the PREMISES, served alcohol in connection with such operations, and conducted late-night commercial activities involving significant patron congestion and movement.”

(Compl., ¶ 65.) “The operation of an unlawful, unlicensed and unpermitted after-hours club, the failure to comply with applicable licensing and safety regulations, and the knowing maintenance of unsafe conditions on the PREMISES constitute unlawful and unfair business acts and practices within the meaning of Business & Professions Code § 17200.” (Compl., ¶ 66.) “DEFENDANTS’ conduct was also unfair in that it violated established public policy, was immoral, unethical, oppressive, and unscrupulous, and caused substantial injury to patrons, including Plaintiff.” (Compl., ¶ 67.)

Moreover,

Plaintiff states: "Plaintiff paid money in the form of an entry fee in order to attend the EVENT at the PREMISES. As a direct and proximate result of DEFENDANTS' unlawful and unfair business practices, Plaintiff lost money or property, including but not limited to monies paid in connection with entry to, or purchases made at the EVENT." (Compl., ¶ 68.) "Plaintiff seeks restitution of monies wrongfully obtained by DEFENDANTS and injunctive relief prohibiting DEFENDANTS from continuing such unlawful and unfair business practices." (Compl., ¶ 71.)

Plaintiff indicates that she paid money to "Defendants" in the form of an entry fee to attend the event at the specified premises. She asserts that David G. Eddings and Cherryl B. Eddings were responsible for operating, owning, or controlling the venue where the allegedly unlicensed and unpermitted event transpired. Furthermore, she indicates that David G. Eddings and Cherryl B. Eddings received the funds generated from conducting the event. The Court finds that these allegations substantiate claims for restitution and establish a connection to David G. Eddings and Cherryl B. Eddings, along with the requisite standing and causation.

Due to Plaintiff's successful demonstration of entitlement to restitution, the Court does not find it necessary to evaluate whether Plaintiff has established entitlement to injunctive relief. (See Kong, supra, 108 Cal.App.4th at p. 1047.)

With respect to the argument regarding uncertainty, the Court concludes that it is unpersuasive. The Eddings Defendants contend that the cause of action lacks clarity because it does not indicate: (1) "[w]hich Eddings Defendant operated the event;" (2) "[w]hich one promoted it;" (3) "[w]hich one furnished alcohol;" (3) "[w]hich one collected an entry fee[.]" (4) "[w]hich one received Plaintiff's money[.]" (4) "[w]hich one knew of a regulatory violation;" and (5) "[w]hich one presently engages in conduct capable of being enjoyed." (Dem., p. 7:13-25.)

The Court emphasizes that Plaintiff is under no obligation to supply this specific information. Plaintiff need only present the claim in a manner that ensures the cause of action is neither ambiguous nor unintelligible, as stipulated in Code of Civil Procedure section 430.10,

subdivision (f). The Eddings Defendants

have not argued that the cause of action is ambiguous or unintelligible. Moreover, as the Complaint is currently written, Plaintiff attributes these actions to both David G. Eddings and Cheryl

B. Eddings. Although this attribution

may be incorrect or implausible, it does not substantiate the argument that the cause of action is ambiguous or unintelligible.

Accordingly, the Court **OVERRULES**

the Eddings Defendants' demurrer to the third cause of action for violation of Business and Professions Code section 17200.

MOTION TO

STRIKE

Legal Standard

Any party, within the time

allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof. (Code

Civ. Proc., § 435, subd. (b)(1).) The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant,

false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a); *Stafford*

v. Shultz (1954) 42 Cal.2d 767, 782 ["Matter in a pleading which is not essential to the claim is surplusage; probative facts are surplusage and may be stricken out or disregarded"].) The

court may also strike all or any part of any pleading not drawn or filed in conformity with California law, a court rule, or an order of the

court. (Code Civ. Proc., § 436,

subd. (b), emphasis added.) An

immaterial or irrelevant allegation is one that is not essential to the

statement of a claim or defense; is neither pertinent to nor supported by an

otherwise sufficient claim or defense; or is a demand for judgment requesting

relief not supported by the allegations of the complaint. (Code Civ. Proc., § 431.10, subd. (b).) The grounds for moving to strike must appear

on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437.)

Discussion

The Eddings Defendants seek to

strike the following: (1) all allegations and requests pertaining to punitive

and exemplary damages brought against them; (2) any requests for joint and several liability related to punitive and exemplary damages; and (3) all allegations and requests related to injunctive relief directed at them. (MTS, pp. 5:1-8:17.)

However, the Court observes that the request to strike punitive damages under the first cause of action has become moot following its decision to sustain the Drollinger Defendants' demurrer concerning that cause of action. Furthermore, Plaintiff concedes that she is not entitled to punitive damages in relation to the third cause of action. (Opp. to MTS, p. 6:5-11.)

Regardless, as the remaining allegations and requests are still contested, the Court must evaluate whether Plaintiff's claims for punitive and exemplary damages, joint and several liability, and injunctive relief have been sufficiently pleaded against the Eddings Defendants.

Ronald A. Eddings

Before the Court renders a decision on the motion to strike, it is essential to consider the implications of Ronald A. Eddings' death. For the reasons articulated in the ruling concerning the Eddings Defendants' demurrer, the Court will evaluate the merits of the motion solely with respect to David G. Eddings and Cherryl B. Eddings. All references to the Eddings Defendants will expressly exclude Ronald A. Eddings.

Punitive and Exemplary Damages

Punitive damages may be imposed where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice. (Civ. Code, § 3294, subd. (a).) A motion to strike punitive damages is properly granted when a plaintiff does not state a prima facie claim for punitive damages. (Turman v. Turning Point of Cent. California, Inc. (2010) 191 Cal.App.4th 53, 63.)

"Malice" is conduct intended by the defendant to cause injury to the plaintiff or despicable conduct carried

on with a willful and conscious disregard of the rights or safety of others. (Civ. Code, § 3294, subd. (c)(1).) “ ‘Punitive damages are proper only when the

tortious conduct rises to levels of extreme indifference to the plaintiff’s

rights, a level which decent citizens should not have to tolerate.’ [Citation.]” (Lackner v. North (2006) 135

Cal.App.4th 1188, 1210.)

“As amended to include

[despicable], the [Civil Code section 3294] plainly indicates that absent an

intent to injure the plaintiff, ‘malice’ requires more than a ‘willful and

conscious’ disregard of the plaintiffs’ interests. The additional component of ‘despicable

conduct’ must be found.” (College

Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 725.) The statute’s reference to despicable conduct

represents a “new substantive limitation on punitive damage awards.” (Ibid.) Despicable conduct is “conduct which is so

vile, base, contemptible, miserable, wretched or loathsome that it would be

looked down upon and despised by ordinary decent people. Such conduct has been described as ‘having

the character of outrage frequently associated with crime.’ ” (Tomaselli v. Transamerica Ins. Co.

(1994) 25 Cal.App.4th 1269, 1287.) Further, “[t]here must be evidence that

defendant acted with knowledge of the probable dangerous consequences to

plaintiff’s interests and deliberately failed to avoid these consequences.” (Flyer’s Body Shop Profit Sharing Plan v.

Ticor Title Ins. Co. (1986) 185 Cal.App.3d 1149, 1155.)

“Oppression” means “despicable

conduct that subjects a person to cruel and unjust hardship in conscious

disregard of that person’s rights.”

(Civ. Code, § 3294, subd. (c)(2).)

“Fraud” means “an intentional

misrepresentation, deceit, or concealment of a material fact known to the

defendant with the intention on the part of the defendant of thereby depriving

a person of property or legal rights or otherwise causing injury.” (Civ. Code, § 3294, subd. (c)(3).)

Plaintiff identifies

paragraphs 54 through 60, 70, 104, 106, and 107 as allegations supporting her

claim for punitive and exemplary damages.

Plaintiff alleges the

following: “[O]n said information and belief alleges that DEFENDANTS, and each

of them, and DOES 1 through 300, knew of

the foreseeable risk of harm and failed to adequately guard against it because

DEFENDANTS believed that the cost of curing the dangerous and hazardous condition

would exceed the potential liability caused by the same. Therefore, DEFENDANTS in acting and/or failing to act as herein alleged did so with reckless disregard for the injurious consequences caused thereby." (Compl., ¶ 54.) "Plaintiff is informed and believes that DEFENDANTS knew of the dangerous condition of the PREMISES and deliberately declined to remedy it because DEFENDANTS determined that the cost of repair, compliance, or temporary closure would reduce profits generated by the unlawful after-hours operations. DEFENDANTS made a calculated decision that preserving revenue outweighed the safety of patrons." (Compl., ¶ 55.) "Such conduct was despicable and carried out with conscious disregard for the safety and rights of Plaintiff and others, entitling Plaintiff to punitive damages pursuant to Civil Code § 3294." (Compl., ¶ 56.) "DEFENDANTS' breach of their duty of care was a legal cause of, and substantial factor in, Plaintiff's harm and damages in this case." (Compl., ¶ 57.) "Plaintiff is informed and believes, and thereon alleges, that prior to the subject incident DEFENDANTS had actual knowledge of the uncovered, unmarked, and unbarricaded hole in the pavement at the PREMISES. Despite such knowledge, DEFENDANTS consciously chose not to repair, cover, barricade, illuminate, or warn of the hazardous condition because doing so would have required expenditure of funds and potential interruption of profitable operations." (Compl., ¶ 58.) "Plaintiff is further informed and believes that DEFENDANTS knowingly failed to employ qualified and adequately trained security personnel and intentionally failed to implement reasonable crowd-control measures in order to reduce operating expenses and maximize profits, despite knowing that alcohol service, overcrowding, and unmanaged patron movement created a foreseeable risk of serious bodily injury." (Compl., ¶ 59.) "Such conduct was despicable and carried on with a willful and conscious disregard for the rights and safety of patrons, including Plaintiff, constituting malice and oppression within the meaning of Civil Code § 3294." (Compl., ¶ 60.)

Plaintiff further alleges: "Plaintiff is informed and believes that DEFENDANTS knowingly operated an unlawful, unlicensed, and unpermitted after-hours club and knowingly maintained hazardous conditions on the PREMISES in order to maximize profits and avoid regulatory compliance costs. DEFENDANTS' conduct was intentional, willful, and undertaken for financial gain, with conscious disregard for the safety of patrons, including Plaintiff, constituting malice, oppression, and fraud within the meaning of Civil Code § 3294." (Compl., ¶ 70.) "Plaintiff is informed and believes that these DEFENDANTS knowingly continued to operate the unlawful after-hours club

and knowingly maintained hazardous conditions on the PREMISES in order to avoid licensing costs, regulatory compliance costs, and safety expenditures, and to maximize profits.” (Compl., ¶ 104.) “Plaintiff is informed and believes that DEFENDANTS knowingly furnished and/or sold alcoholic beverages without proper licensure in violation of Business & Professions Code § 25604 in order to avoid licensing costs and increase profits. DEFENDANTS were aware that unregulated alcohol service would contribute to overcrowding, unsafe patron movement, and foreseeable confrontations, yet deliberately chose to continue such conduct for financial gain.” (Compl., ¶ 106.) “Such conduct was despicable and carried on with willful and conscious disregard for the safety of patrons, entitling Plaintiff to punitive damages pursuant to Civil Code § 3294.” (Compl., ¶ 107.)

Upon examination of these allegations, the Court finds that these allegations do not substantiate a claim of malice, oppression, or fraud. The conduct described does not demonstrate that the Eddings Defendants intended to inflict harm upon Plaintiff, nor does it reflect despicable actions taken with a willful disregard for the rights or safety of others. There are insufficient allegations to indicate that the Eddings Defendants subjected Plaintiff to cruel and unjust hardship while consciously ignoring her rights, or that they engaged in intentional misrepresentation, deception, or concealment of material facts with the objective of depriving Plaintiff of her property or legal rights, or otherwise causing her injury.

Consequently, the Court STRIKES any allegations and prayers for relief related to punitive and exemplary damages brought against the Eddings Defendants.

Joint and Several Relief

Punitive and exemplary damages

are assessed based on the specific misconduct and financial status of each defendant. (See Civ. Code, § 3294, subd.

(a); Adams v. Murakami (1991) 54 Cal.3d 105, 110-112.) Consequently, any request to hold defendants “jointly and severally” liable for such damages is considered improper in accordance with Code of Civil Procedure section 436.

Given that this request is improper

and the Court has determined that Plaintiff has not adequately alleged grounds for punitive damages against the Eddings Defendants, the Court STRIKES any requests for joint and several liability concerning punitive and exemplary

damages.

Injunctive Relief

“[T]he current UCL has not altered the nature of injunctive relief, which requires a threat that the misconduct to be enjoined is likely to be repeated in the future.” (Madrid v. Perot Systems Corp. (2005) 130 Cal.App.4th 440, 465.) “ ‘Injunctive relief has no application to wrongs which have been completed [citation], absent a showing that past violations will probably recur. [Citation.]’ [Citation.]” (Ibid.)

Plaintiff alleges that “[u]nless restrained by this Court, DEFENDANTS will continue to engage in unlawful and unfair business practices alleged herein.” (Compl., ¶ 69.) However, Plaintiff does not present any factual allegations to substantiate the claim that the Eddings Defendants will persist in unlawful and unfair business practices. Consequently, the Court GRANTS the Eddings Defendants’ request to strike any allegations and prayers for relief pertaining to injunctive relief.

Accordingly, the Court GRANTS IN PART the Eddings Defendants’ motion to strike.

Leave to Amend

“When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend. ... This is analogous to an order sustaining a demurrer.” (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768, citing Perlman v. Municipal Court (1979) 99 Cal.App.3d 568, 575.) Here, Plaintiff has not shown a reasonable possibility of successfully amending her claims. As such, the request for Leave to Amend is DENIED.

ORDERS

1) Defendants

Ella L. Drollinger Company, LLC, Drollinger Properties, and H.B. Drollinger's Demurrer to Plaintiff Anita Jones' Complaint is OVERRULED with respect to the fourth

cause of action and SUSTAINED as to the first and fifth causes of action.

2) Defendants

David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings' Demurrer is OVERRULED.

3) Defendants

David G. Eddings, Cheryl B. Eddings, and Ronald A. Eddings' Motion to Strike Portions of Plaintiff Anita Jones' Complaint is GRANTED IN PART.

a.

The Court STRIKES all allegations and requests for punitive and exemplary damages against the Eddings Defendants.

b.

The Court STRIKES any request for joint and several liability related to punitive and exemplary damages.

c.

The Court STRIKES all allegations and requests for injunctive relief against the Eddings Defendants.

4) Plaintiff

Anita Jones is GRANTED twenty (20) days Leave to Amend with respect to the first cause of action.

5) Plaintiff

Anita Jones is DENIED Leave to Amend with respect to the fifth cause of action, the allegations and prayers for relief related to punitive and exemplary damages, joint and several liability, and injunctive relief.

6) The

Drollinger Defendants are ordered to provide notice of this Court's ruling.

IT IS SO ORDERED.

DATED: September 24, 2026

Tamara

Hall

Judge
of the Superior Court